

Justification for an Exception to Fair Opportunity
Federal Acquisition Regulation (FAR)16.505 (b)(2)(ii)(B)

1. Identification of the Agency and Contracting Activity: Defense Health Agency (DHA), United States Army Medical Research Acquisition Activity (USAMRAA), Contracts Group 1
2. Nature and/or Description of Action being Approved: Approval of a contract modification to exercise FAR Clause 52.217-8 on Firm Fixed Priced order W81XWH22F0007.
3. Description of Supplies/Services and Estimated Value: This will be a firm-fixed price Federal Acquisition Regulations (FAR) 52.217-8 Extension of Services modification to MicroTechnologies LLC, for the continued lease of 104 multi-functional devices (MFDs), and maintenance and support services. The Computer Hardware, Enterprise Software Solutions (CHESS) Indefinite Delivery Indefinite Quantity (IDIQ) award the Task Order was originally made from had an original expiration date that would not allow the use of the Extension of Services. Since the CHESS IDIQ has since been extended, the base award will now allow for an active Extension of Services period. The FAR clause was included in the Task Order award but since it was thought to be unusable, the Extension of Services pricing was not evaluated in the overall price analysis at time of original award.

Period	Period of Performance	Estimated Value	Type of Funding
FAR 52.217-8 OP1	04 March 2025 – 03 June 2025		
FAR 52.217-8 OP2	04 June 2025 – 03 September 2025		
Total			

4. Exception to Fair Opportunity: 41 U.S.C.1901 as implemented in FAR 13.501(a)(1)(ii).
5. Rationale Supporting the Exception to Fair Opportunity: The Government is currently working on getting a new contract in place through Defense Logistics Agency (DLA), the Defense Health Agency (DHA) mandated source now that a Department of Defense Instructions (DoDI) 5330.03 agreement is in place between the two entities. USAMRAA intends to extend the order with MicroTechnologies LLC to ensure continuity of the mission while the follow-on action is procured by DLA. These MFDs are critical to allow WRAIR to effectively perform and



maintain control of its missions through networkable printer/scanner/copier/fax combination that are Common Access Card (CAC) enabled. These are enterprise caliber devices distributed among divisions at WRAIR for collective use in performing daily tasks. A break in services would greatly impact WRAIR's ability to meet their mission and would negatively impact the care provided to Uniformed Services and their families.

6. Other Facts:

a. Procurement History:

(1) Is this a new requirement? No

(2) If 9.a.(1) is No, was the action just prior to this one competed? Yes, the prior contract was a 8(a) set-aside for a base plus two option periods.

(3) If 9.a.(2) is Yes, what has changed where this action cannot be competed? The follow-on action is being competed.

b. Additional Information: None Applicable

7. Actions to Remove or Overcome any Barriers to Competition: No effective competition is anticipated for this interim extension.

8. Market Research: Market research was conducted and MicroTechnologies, LLC. is the only contractor that can meet the Governments current needs.

9. Technical Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

System Administrator
Walter Reed Army Institute of Research

10. Requirements Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

System Administrator
Walter Reed Army Institute of Research

11. Fair and Reasonable Cost Determination:

I hereby determine the anticipated cost to the Government for this contract action will be fair and reasonable.

Basis for Determination: The Government will utilize the pricing for Option Period 4 for the extension which was determined fair and reasonable at the time of award.

[REDACTED]

Contracting Officer
USAMRAA

12. Contracting Officer Certification:

I certify this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Contracting Officer
USAMRAA

Review

I have reviewed this justification and find it adequate to support other than full and open competition.

Contracting Officer
USAMRAA

Approval

Based on the foregoing justification, I hereby approve the procurement of the continued lease of 104 multi-functional devices (MFDs), and maintenance and support services on an other than full and open competition basis pursuant to the authority of 41 U.S.C.1901 as implemented in FAR 13.501(a)(1)(ii), subject to availability of funds, and provided that the supplies and/or services herein described have otherwise been authorized for acquisition.

Contracting Officer
USAMRAA